

Hatarat Nedarim to Kal Nidré Joseph Mosseri

It's that time of the year again -- Tish'ah BeAb is over and Selihot season will be coming to usher in the High Holidays. But wait; between Tish'ah BeAb and Selihot, we have another community event, ***Hatarat Nedarim***. While growing up I never noticed anyone who didn't participate in Hatarah, but now each year I seem to be hearing from more people who are adamantly opposed to doing Hatarah. In this article I hope to properly show the origins and meaning of this custom, when and how it's done, as well as why we do it.

I would like to begin by mentioning that this custom of Hatarat Nedarim does not seem to have been practiced the way we know it today until about the 15th century of the Common Era. The custom, even though much older, became popular due to a statement in the Zohar, Peqoudé 249, that states , “Those that are condemned and excommunicated , are any people that uttered words that should not have been said, and then they uttered holy words of Torah, their mouths are considered fouled. These individuals will remain in a state of condemnation and excommunication for 40 days, during which time their prayers will not be heard.” By doing Hatarat Nedarim, the earthly court frees him and prays that the heavenly court will do the same. As such, we do the first Hatarah ceremony 40 days prior to Rosh Hashanah; because no one wants to enter the New Year and not have their prayers listened to.

In the most simple of terms, Hatarat Nedarim is the Annulment of Vows. I believe that it is this literal definition that turns people off. The detractors of Hatarah may say, “I don't make vows, and if I do, why should I just be able to annul them? If so, this custom of Hatarah is teaching people to never keep their word.” However, there is much support to say that this is not what Hatarat Nedarim is about.

There is a tractate in the Gemara called Masekhet Nedarim which is devoted entirely to the subject of vows. You would think that the main focus there would be how to upkeep our vows, yet surprisingly it focuses on the exact opposite! Instead of teaching us how to make and keep one's vows, it is filled with various ways to annul a vow. The Hakhamim ask how each vow might be nullified or rejected. They search for loopholes and circumstances which may make a vow obsolete.

One such circumstance is: Are there any factors unknown to the vower that would have prevented him/her from making this vow?

Nevertheless, The Gemara shows us in numerous places the problems with making vows. Nedarim 22a says: “One who vows is like one who built an unauthorized altar, and one who fulfills his vow is like one who sacrifices on it”. In Nedarim 77b, it says “He who vows even though he fulfills it, is called a sinner”. Obviously, the Hakhamim saw vows as very problematic and, as such, always tried to scrutinize the vow to find even a small opening for a way out of it; they clearly saw them better annulled than fulfilled. The question is why? Why should vows be viewed as something sinful? If a vow was made, shouldn't the Hakhamim promote its fulfillment?

Hakham Abraham Hamway, in his Bet El (Livorno 1878), in his introduction to Hatarat Nedarim, states on page 145 “how well known it is that a person who vows, sins. Such a person not only sins but he is called evil. The Hakhamim state that because of vows, children die. When a person delays the fulfillment of his vows, he causes death to himself and the angels constantly mention his sins in the heavenly court; as such, he is denied salvation.” Therefore, he warns, that we should seriously consider Hatarat Nedarim and Hatarat Qelalot to prevent evil from befalling us. Many other Hakhamim wrote about the custom of Hatarat Nedarim at length, among them Hakham Haim Yosef David Azoulai in his Siporen Shamir, Hakham Haim Palacci in his Mo'ed LeKhol Hai, Hakham Refael Aharon Ben Shim'on in his Nehar Missrayim, Hakham Ya'aqob Mosheh 'Ayash in his Derekh Haim, Hakham Shem Tob Gaguine in his Keter Shem Tob, Hakham Ya'aqob Haim Sofer in his Kaf Haim and countless others. In fact, most of our Hakhamim from Egypt, Iraq, Israel, Morocco, Syria, Tunisia, and Turkey, not only wrote about the laws and customs of Hatarat Nedarim, they absolutely enacted it in their communities yearly before the High Holidays.

Just to be clear, The Shulhan 'Arukh (Yoreh De'ah 211:4) states, that the vows we are referring to are strictly swears and promises a person makes to himself. This is the accepted view in all rabbinic sources and we will proceed to examine why Hatarat Nedarim is so important.

In order to understand this better, it's important to recognize what motivates people to make vows. Masekhet Nedarim shows us time and again in the Mishnah

and the Gemara that vows are generally made as a reaction to anger. Not only that, but a vow is in fact an expression of anger. These vows generally cause a disruption in people's lives. The moment of anger that caused a person to make a vow generally ends with that person abstaining from enjoying life because they can no longer intermingle with all people at all places. This is due to the fact that many vows involve reactions to perceived slights, insults and wrongdoings while interacting with people we know – business partners, friends, relatives, and neighbors. These relationships can end up becoming negative and bitter rather than positive and meaningful. As we all know through experience, a vow is usually made in haste and then regretted. Vows are very powerful - they can destroy life, family, friends, businesses, etc. Vows separate a person from the rest of the world, and they are dangerous because they can cause discord and strife between people who were once close friends. Vows also create unnecessary walls and fences that can prevent a family and community from operating smoothly. How many people do you know who no longer talk to a family member because of such a vow? How many people do we refuse to talk to and how many places do we refuse to step foot in. WHY?

Nedarim 23b teaches that a person who does not want his vows to take effect throughout the year should stand on Rosh Hashanah and declare “all vows that I take this year should be null and void.” The efficacy of this tradition is discussed by the various commentaries. The Geonim generally reject the idea of a blanket *hatarat nedarim* and did not practice this in their communities. Haayé Gaon suggests that rather than a request for annulment, the congregation should recite the prayer as a request for forgiveness for all those who transgressed vows they had taken. Nevertheless, many follow the position of Rabenou Tam, who accepts the ruling of the Gemara as stated and permits a person to make a condition that all vows made during the upcoming year should be declared void. The declaration is made in a public forum in order to make the matter known to all.

The text of Hatarat Nedarim in fact includes many things, not just vows, but promises, forgiven acts, acceptances, customs, swears, curses, etc. -- even bad dreams. Basically, anything that can hinder us from being complete individuals with ourselves and with the entire world should be annulled prior to Rosh Hashanah so we can begin the New Year afresh.

As stated, we have a custom of doing the first Hatarah 40 days prior to Rosh Hashanah, and some do a second one 40 days prior to Yom Kippour. All agree that the next Hatarot are made the morning of Rosh Hashanah eve and the morning of Yom Kippour eve. That's the way it was done for centuries but in the last number of decades the custom has adapted to societal norms and is now conducted on the Saturday night immediately prior to these prescribed times. Some have questioned the validity of doing Hatarah at night but Shulhan Arukh Yoreh De'ah 228:3 allows it.

The proper way for the Hatarah to be conducted is for all those present to stand silently while concentrating on the words being uttered by the congregational petitioner who reads the formula on their behalf to the rabbinical court of ten, or at least three learned men. Only the rabbinic tribunal should sit while everyone else stands. Shulhan 'Arukh, Yoreh De'ah 234:56 states that if a woman cannot attend, her husband can represent her. In the old days, the Hakhamim used to go to the homes and do it for groups of women.

It is my belief that we do Hatarah a number of times because it is difficult for a person to breakdown and change his bad practices. By doing it again and again, a person should see the insistence of our Torah on watching our minds and tongues that cause us to vow. These Hatarot are also a preparation for the night of Yom Kippour when we recite the most famous Hatarah, Kal Nidré!

Yes, I know the Gemara said to annul these vows on Rosh Hashanah, but if you carefully read Yehezqel 40:1, you'll see he refers to Yom Kippour as Rosh Hashanah. Leaving the Kal Nidré for the moment Yom Kippour begins, I believe, really drives home the point. We are poised to pray to Hashem for 24 hours to ask him to forgive all our sins, but we can't until we ourselves tear down the walls that divide us. We must stop our fighting, feuding, bickering, and holding grudges. Only then can we pray as a congregation and as a community, and we know that above all else what Hashem wants from us is UNITY.

That's what Hatarat Nedarim OuQlalot is all about.

Tizkoo LeShanim Rabot, Ne'Imot VeTobot!